MULTIFUNCTIONAL ROLE OF PARLIAMENT



In the 'Indian politico-administrative system', the Parliament occupies a central position and has a multifunctional role. It enjoys extensive powers and performs a variety of functions towards the fulfilment of its constitutionally expected role. Its powers and functions can be classified under the following heads:

1. Legislative Powers and Functions
2. Executive Powers and Functions
3. Financial Powers and Functions
4. Constituent Powers and Functions
5. Judicial Powers and Functions
6. Electoral Powers and Functions
7. Other powers and functions.

1. Legislative Powers and Functions

The primary function of Parliament is to make laws for the governance of the country. It has exclusive power to make laws on the subjects enumerated in the Union List (which at present has 98 subjects, originally 97 subjects) and on the residuary subjects (that is, subjects not enumerated in any of the three lists). With regard to Concurrent List (which has at present 52 subjects, originally 47 subjects), the Parliament has overriding powers, that is, the law of Parliament prevails over the law of the state legislature in case of a conflict between the two.

The Constitution also empowers the Parliament to make laws on the subjects enumerated in the State List (which at present has 59 subjects, originally 66 subjects) under the following five abnormal circumstances:

(a) when Rajya Sabha passes a resolution to that effect.

(b) when a proclamation of National Emergency is in operation.

(c) when two or more states make a joint request to the Parliament.

(d) when necessary to give effect to international agreements, treaties and conventions.

(e) when President's Rule is in operation in the state.